

Form No:HCJD/C-121

ORDER SHEET

LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Case No.

Crl. Misc. No.33826/B/2021

Imran Hussain & another

Versus

The State & another

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge and that of Parties of counsel, where necessary.
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30.09.2021 Nemo for the petitioners.
Mr. Nauman Hassan Baloch, Spl. Prosecutor for Customs.
Zohair Ali, Inspector/IO, Customs.

Through this petition, Imran Hussain and Shakeel Nazir petitioners seek post arrest bail in case FIR No.59 dated 30.04.2021 registered for offences under Sections 2(S), 16, 139, 156(1)(8)(i)(c)(iii)(a)(70), 157 and 178 of Customs Act, 1969, read with SRO 666(1) 2006 and SRO 499(1)/2009 registered at Police Station Investigation & Prosecution Cell, Model Customs Collectorate (E & C) Customs House, Sialkot.

2. Arguments on behalf of Mr. Amjad Farouck Bismill Rajpoot, Advocate, learned counsel for the petitioner and the learned Prosecutor were heard on the previous date of hearing. Record perused.

3. According to the prosecution's case, on 30.04.2021 when the petitioners were taken into custody by the immigration and custom staff at Sialkot International Airport on their arrival through flight No.G9551 Air Arabia from Sharjah to Sialkot at 03:30 a.m. approximately, they allegedly in their luggage were carrying smuggled items, mentioned in the crime report as well as the recovery memo. Learned

Special Prosecutor having assistance of the Investigation Officer, present in Court, candidly admitted on Court's query that no luggage tag as well as any information qua the subject luggage's booking in the name of petitioners is available on record. Though the Investigation Officer through a letter bearing C.No.I&P/Cus/59/2021/3657 dated 17.05.2021 sought information from the Station Manager Air Arabia, Air Line, Sialkot Airport, Sialkot, regarding the luggage booked against the petitioners' name but admittedly could not receive the same so far despite lapse of more than four months thereafter. Similarly, to prove the allegation against the petitioners with regard to the recovery from their possession, the Investigation Agency could not take into possession CCTV footage or video from the system installed at the airport. So far as the communication of petitioner Shakeel Nazir from abroad with co-accused Ch. Ahmad Saqib Cheema here in Pakistan is concerned, the Investigation Officer concedes that though he has procured Call Data Record of the numbers yet has not brought on record any certificate of registration of the cell phone numbers in issue in the name of petitioner Shakeel Nazir and Ch. Ahmad Saqib Cheema. Similarly, no forensic report qua the use of recovered cell phones or the use of whatsapp account by them is available with the prosecution. The Investigation Officer to the extent of Imran Hussain petitioner has come to the conclusion that he was given free ticket by Shakeel Nazir, petitioner after consultation with co-accused Ch. Ahmad Saqib Cheema and the smuggled items allegedly recovered from the bag of Imran Hussain petitioner were not owned by him and even their nature or availability in

his luggage was not in his knowledge. It has also been noticed that as per crime report value of the items recovered was assessed at Rs.32,000,000/- approximately but the Officer remained unable to point out the availability or reference of method/formula or any document, price list on file according to which the value was determined prior to the registration of this case. Even name of the person who assessed the goods' value for the complainant is not given in the file while this aspect of the case is very much relevant with regard to the quantum of sentence of imprisonment provided by different provisions of The Customs Act, 1969. Both the petitioners admittedly do not have any previous criminal record. All these circumstances make the case of petitioners one of further inquiry into their guilt entitling them to the grant of post arrest bail. Hence, this petition is allowed and the petitioners are admitted to post arrest bail subject to their furnishing bail bonds in the sum of Rs.500,000/- each with two sureties each in the like amount to the satisfaction of learned trial court.

(Syed Shahbaz Ali Rizvi)
Judge

Approved for reporting.

Judge

Nazir